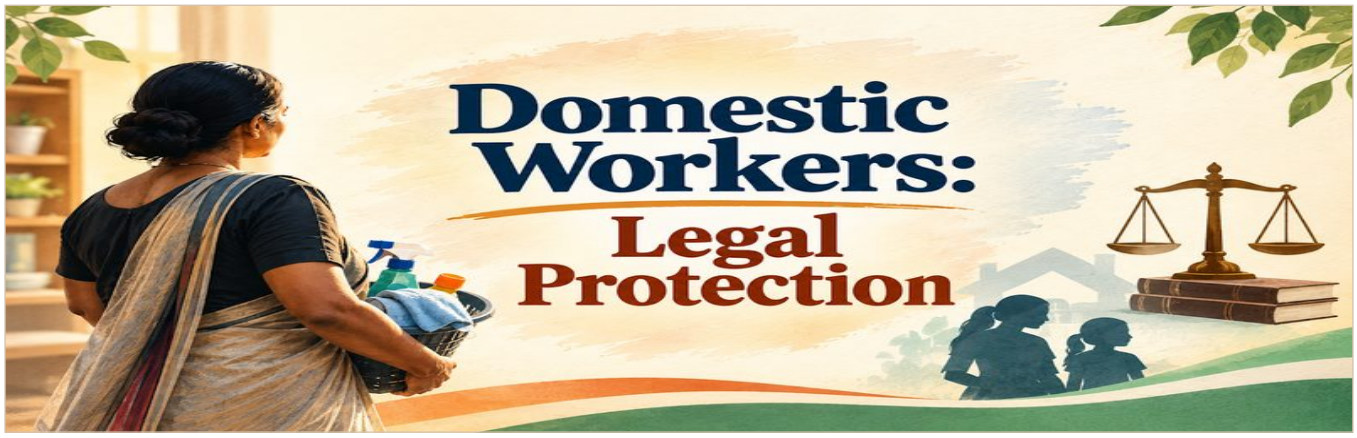


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[GS PAPER I, GS PAPER III, GS PAPER IV - HUMAN DIGNITY, SOCIAL JUSTICE, ESSAY - DIGNITY OF LABOUR]
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Domestic Workers: Legal Protection



This article examines the challenges faced by domestic workers and the need for comprehensive legal protection, social security, and fair working conditions. It highlights key laws, welfare measures, ILO provisions, and initiatives aimed at safeguarding the rights and dignity of domestic workers.

Domestic Workers: Legal Protection

Syllabus areas:

GS Paper I - Indian Society, Role of Women, Vulnerable Sections, Social Empowerment, Migration and Informal Employment

GS Paper III – Employment, Informal/Unorganised Sector, Labour Reforms, Inclusive Growth, Social Security

GS Paper IV - Human Dignity, Social Justice, Compassion, Accountability, Ethical Treatment of Vulnerable Workers

Essay - Dignity of Labour, Women Empowerment, Social Security, Inclusive Development, Rights of Informal Workers, Social Justice

Domestic Workers

The Supreme Court directed Union Government to enact comprehensive law to stipulate the rights of domestic workers and set up a committee for framework on this. Even the court directed to submit the committee report in 6 months but in vain.

India has **40 million to 90 million domestic workers**, majority of them are women and girls. Most of them are **SC, ST**. These workers may face harassment, abuse etc. Child labour is rampant.

Domestic workers may be:

1. live-in workers residing in employer's home

2. **Live – out workers** commuting daily.

Exploitative Employment Agencies and Brokers

Many domestic workers are migrant workers even from neighbouring countries, not only from another state.

Their contribution to global economy is recognised by the **International Labour Organisation (ILO)**, hence passed Convention in 2011 to ensure the rights and protections of domestic workers.

While India voted in favour of this, it is yet to ratify it.

Interestingly, multiple attempts to pass such legislations since 1950.

The **National Platform for Domestic Workers** formed in 2012. It drafted **Domestic Workers (Regulation of Work and Social Security) Bill** in 2017.

State-Level Initiatives

Tamil Nadu Govt set up welfare board under **Tamil Nadu Manual Workers Act, 1982**.

Under this, minimum wage of **39 Rupees per hour**.

Karnataka Govt announced introduction of **Domestic Workers (Social Security and Welfare) Bill, 2025**.

In India only **12 states** stipulate minimum wage for domestic workers.

Examples: Andhra Pradesh, Bihar, Tamil Nadu, Karnataka, Kerala, Telangana etc.

!**All South India states**

Legal Framework

- **Unorganised Workers Social Security Act, 2008**
- **Sexual Harassment of Women at Workplace (Prevention, Prohibition, Redressal) Act, 2013**
- **ILO Convention (189) – 2011** – yet to be ratified
- **Minimum Wages Act, 1948**

Organisations and Movements

- **National Domestic Workers Movement**
- **Self Employed Women's Association**
- **All India Domestic Workers Union**
- **National Platform for Domestic Workers**

